

Pappu Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 August 2010 · Writ - C No. 50788 of 2010 · **Writ disposed of; petitioner relegated to apply for transfer of connection.**

HEADNOTE

A person who is not the recorded consumer cannot obtain mandamus directing the licensee to accept electricity bills in his name. After the death of the recorded consumer, the successor must apply for transfer of the connection under the U.P. Electricity Supply Code, 2005; any such application is to be decided in accordance with law.

FACTUAL SUMMARY

Pappu Singh sought a writ of mandamus directing U.P. Power Corporation Ltd. to accept an electricity bill from him. He claimed the connection stood in the name of his grandfather Mewa Singh, who died in July 2009. Counsel for the Corporation submitted that the petitioner had not applied to transfer the connection into his own name under the U.P. Electricity Supply Code, 2005. The petitioner's counsel then stated that an appropriate application would be made before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

transfer of connection after death of consumer

HOLDING

Mandamus will not issue to compel the licensee to accept bills from a person in whose name the connection does not stand. Where the recorded consumer has died, the successor must apply for transfer of the connection under the U.P. Electricity Supply Code, 2005; such an application is to be decided in accordance with law and consequential steps taken. The writ was disposed of on that footing without granting or refusing the bill-acceptance relief. ¶ 1

FLAG order cites U.P. Electricity Supply Code 2005 generally; no clause numbered

PRINCIPLE TAGS

relegate-to-statutory-remedy A person who is not the recorded consumer cannot obtain mandamus directing the licensee to accept electricity bills in his name. After the death of the recorded consumer, the successor must apply for transfer of the connection under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE WAS OBLIGED TO ACCEPT BILLS FROM THE PETITIONER WITHOUT TRANSFER OF THE CONNECTION INTO HIS NAME

¶ 1

NOT DECIDED — MERITS OF ANY APPLICATION FOR TRANSFER OF THE CONNECTION

¶ 1

